Oregon

Tina Kotek, Governor

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Robert Samuel White
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RE: Request for preservation of records and/or evidence for SP26-097765

Oregon State Police (OSP) Risk Management is not in receipt of your preservation request; however, Central Records Section alerted the team of your request.

In accordance with Oregon Administrative Rule 166-030-0045, OSP will apply a litigation hold to any associated record included in your preservation request. In the absence of a preservation request, per Oregon Revised Statute 192.108, OSP maintains its records according to the retention schedules filed with Oregon Secretary of State (SOS).

OSP will place a litigation hold on any evidence you included in your preservation request. In the absence of a preservation request, OSP maintains evidence according to ORS 131.125, prosecutorial guidelines, and OSP policy.

OSP asks that you confirm that your case is not resolved and that the litigation hold is still necessary every six months. Failure to confirm such may result in OSP presuming that your case is resolved, releasing the litigation hold(s), and reverting to its standard records and/or evidence maintenance protocols, which are outlined above. This confirmation request is in place as an effort to conserve state resources and efficiently manage records and/or evidence.

If you have questions or concerns about this response, please contact risk@osp.oregon.gov.

Respectfully,

Oregon State Police